

26STLC02251 26STLC02251

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-16

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Case Number: 26STLC02251 Hearing Date: July 16, 2026 Dept: 26

TENTATIVE

RULING:

Defendant City

of Monterey Park's Demurrer to the Complaint is sustained without leave to amend.

Analysis:

Plaintiff Shawn Ivy ("Plaintiff") filed the instant action against Defendant City of Monterey Park (erroneously sued as "Monterey Park Police Department") ("Defendant") on April 2, 2026. On June 9, 2026, Defendant filed and served the instant Demurrer to the Complaint. No opposition has been filed to date.

Discussion

Allegations in the Complaint

The Complaint states on the face page that this is an action for (1) negligence; and (2) issuance of subpoena duces tecum. Plaintiff asks the Court to compel Defendant "to release certain sealed records pertaining to a 1995 Grand Theft Auto charge identified in Plaintiff's FBI background report." (Compl., ¶1.) Plaintiff alleges that the FBI report contains an error because the date of birth for the arrest does not match Plaintiff's birth year. (Ibid.) Plaintiff attempted to get the report from Defendant and was informed that the records in question are sealed and require a court-issued subpoena to access. (Ibid.) Plaintiff seeks to identify the potential mix-up and correct the erroneous charge on his record, and asks the Court to issue a subpoena duces tecum

compelling Defendant “to release all records related to the arrest and case file concerning the 1995 Grand Theft Auto charge, including any fingerprint match information.” (Ibid.) Plaintiff also asks for \$30,000.00 in damages for Defendant’s egregious conduct and continuing neglect with respect to this matter. (Id. at ¶¶1, 4.) The request for a subpoena is brought pursuant to Code of Civil Procedure sections 1985.3, 2020.410, and 1060, Penal Code section 1230.4, Evidence Code section 1040, and Article I, section 13 of the California Constitution. (Id. at ¶3.)

Demurrer to Complaint

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Ross Decl., ¶2.) Defendant demurs to the Complaint for failure to allege sufficient facts, citing Code of Civil Procedure section 430.10, subdivision (e).

Defendant first demurs on the basis that the Complaint is barred by failure to allege compliance with the Government Claims Act. No suit for money or damages may be brought against a public entity, until a written claim therefor has been presented to the entity and acted upon or deemed rejected. (Gov. Code, § 945.4; *Rason v. Santa Barbara City Housing* (1988) 201 Cal.App.3d 817, 822.) A claim for personal injury or death must be submitted no later than six months after the cause of action accrued, and as to any other cause of action no later than one year after accrual. (Gov. Code, § 911.2, subd. (a).) The Complaint must allege the plaintiff’s compliance with the requirements for claims submission. (*State of Calif. v. Sup. Ct. (Bodde)* (2004) 32 Cal.4th 1234, 1243-1244.)

The Complaint does not address timely presentation of any claim. Plaintiff alleges that Plaintiff requested a background check from the FBI on September 7, 2024, and that on December 18, 2025, the Monterey Park Police Department received a certified letter from Plaintiff apparently notifying them of the alleged error in Plaintiff’s FBI report. No other pertinent dates are alleged. Even assuming that a cause of action may have accrued when Plaintiff requested a background check and that Plaintiff’s certified letter is a written claim therefor, Plaintiff has not pled compliance with the Government Claims Act because more than a year passed between those two events. This pleading defect requires the Court to sustain the Demurrer.

Additionally, government liability is entirely statutory and cannot be

based on common law. (Govt. Code, § 815.2; Munoz v. City of Palmdale (1999) 75 Cal.App.4th 367, 369.) The Complaint does not identify any statute that provides for a negligence cause of action against Defendant. (Compl., ¶3 ("Legal Basis for Complaint").)

Defendant also demurs as to Count 2 on the basis that no cause of action exists for "issuance of subpoena duces tecum." Defendant is correct that no language in Code of Civil Procedure section 1985.3 allows a party to file a cause of action for issuance of a subpoena, nor does Code of Civil Procedure section 2020.410 create a cause of action.

Count 2 is not a valid cause of action.

To the extent Plaintiff asks the Court to issue a subpoena duces tecum for the arrest reports under § 1985.3, that section does not authorize access to another person's criminal records and it requires compliance with notice procedures not established here. (See Code Civ. Proc., §1985.3(a)(1), (b).)

Based on the foregoing, the Demurrer to the Complaint is sustained for failure to allege compliance with the mandatory requirements of the Tort Claims Act, and for failure to allege a cause of action for negligence or issuance of a subpoena duces tecum. Leave to amend is not granted. Plaintiff bears the burden to demonstrate that leave to amend should be granted, which must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) This burden is unmet in light of Plaintiff's non-opposition to the Demurrer.

Conclusion

Defendant City of Monterey Park's Demurrer to the Complaint is sustained without leave to amend.

Moving party to give notice.